

26STCV20350 26STCV20350

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-09-22

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Case Number: 26STCV20350 Hearing Date: September 22, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 22, 2026

Case Name: Carillo v. BMW of North

America, LLC, et al.

Case

No.: 26STCV20350

Matter: Demurrer with Motion to Strike

Moving

Party: Plaintiff Armando

Carrillo

Responding Party: Defendant BMW of North America, LLC

Tentative

Ruling: The hearing on Plaintiff

Armando Carrillo's demurrer is continued to October 23, 2026.

Plaintiff

Armando Carrillo ("Plaintiff") filed this action against Defendants BMW of

North America, LLC ("BMW"), a Delaware Limited Liability Company, Bayerische

Motoren Werke Aktiengesellschaft, a Multinational Corporation, and DOES 1-20.

The Complaint alleges three causes of action for: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act; and (3) violation of the Song-Beverly Act Section 1793.2, subdivision (b).

Plaintiff

demurs to BMW's 25 affirmative defenses. BMW opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

Analysis

Meet and

Confer

Pursuant to Code of Civil Procedure section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ." (Code Civ. Proc. § 430.41, subd. (a).)

Plaintiff

contends that he sent a meet-and-confer email to BMW. (Eissagholian Decl., ¶ 2.) However, email is not a permissible method of meeting and conferring under

Code of Civil Procedure section 430.41, subdivision (a). The parties must fulfill their statutory obligation to meet and confer "in person, by telephone, or video conference." (Code Civ. Proc. § 430.41, subd. (a).)

Thus, the Court
will continue the hearing on Plaintiff's demurrer to allow the parties to meet and confer in good faith.

Conclusion

The hearing on Plaintiff Armando
Carrillo's demurrer is continued to October 23, 2026.

The parties
are ordered to meet and confer within 14 calendar days of this hearing.
Plaintiff is ordered to file a meet-and-confer declaration in compliance with
the respective code sections. (Code Civ. Proc. § 430.41, subd. (a).)
Plaintiff's meet-and-confer declaration is due on October 16, 2026.